

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
JANITA SPENCE,

Plaintiff designate

Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

THE CITY OF NEW YORK, KENIA ACOSTA P.O.
OF THE 44 PCT., SHIELD #1035, TAX ID #952383,
OTHER CITY OF NEW YORK POLICE OFFICERS
INVOLVED IN ARREST #B16644121 N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON AUGUST 5, 2016
AND NO OTHER DATE,

SUMMONS

Plaintiff reside at

JANITA SPENCE
404 East 105th Street
New York, New York 10029

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
June 28, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN R. DEPAOLA

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

KENIA ACOSTA P.O. OF THE 44 PCT.

SHIELD #1035, TAX ID #952383

2 East 169th Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

-----X
JANITA SPENCE,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, KENIA ACOSTA P.O.
OF THE 44 PCT., SHIELD #1035, TAX ID #952383,
OTHER CITY OF NEW YORK POLICE OFFICERS
INVOLVED IN ARREST #B16644121 N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON AUGUST 5, 2016
AND NO OTHER DATE,

Defendants.

-----X

JANITA SPENCE, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES PLLC,
respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff JANITA SPENCE was a resident of New York County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 21st day of July, 2017 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim

arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B16644121 N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about August 5, 2016, at approximately 12:00 A.M., in the vicinity of 170th Street and Clay Avenue, which the police state occurred at approximately 12:30 P.M., in the vicinity of the front of 1436 Clay Avenue, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **JANITA SPENCE**, in an excessive manner about her

person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about August 5, 2016, at approximately 12:00 A.M., in the vicinity of 170th Street and Clay Avenue, which the police state occurred at approximately 12:30 P.M., in the vicinity of the front of 1436 Clay Avenue, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **JANITA SPENCE** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about August 5, 2016, at approximately 12:00 A.M., in the vicinity of 170th Street and Clay Avenue, which the police state occurred at

approximately 12:30 P.M., in the vicinity of the front of 1436 Clay Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of Bronx and there charged her with the crimes on Docket No. 2016BX033821. The Plaintiff was thereafter held in custody over the course of approximately sixty-eight (68) days until she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about August 5, 2016, at approximately 12:00 A.M., in the vicinity of 170th Street and Clay Avenue, which the police state occurred at approximately 12:30 P.M., in the vicinity of the front of 1436 Clay Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained her and her liberty and then took her into custody and causing her to be incarcerated as a detainee in the City of New York's Correctional Facility Jail. The Plaintiff was thereafter held in custody over the course of approximately

sixty-eight (68) days before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FIFTH CAUSE OF ACTION

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Upon information and belief, on or about August 5, 2016 and from that time until the dismissal of charges on or about May 3, 2017 which was a favorable termination for the accused by the Honorable Judge presiding at, Bronx County Criminal Court, Defendants **THE CITY OF NEW YORK, KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B16644121 N/H/A JOHN/JANE DOE I-IV**, an innocent woman without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
16. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

17. The commencement of these criminal proceedings under Docket No. 2016BX033821 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.
18. As a result of the malicious prosecution, Plaintiff was deprived of her liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend her liberty against these unjust charges until all charges were dismissed.
19. It should be noted that the Plaintiff was never in actual, constructive or statutory possession of the firearm that was allegedly found in the vehicle that belonged to Walter Alston. When the Plaintiff was arrested she was down the block from the vehicle in front of 1670 Clay Avenue at her cousin's Meeka Spence's apartment. The Plaintiff was out of the vehicle for over 20 minutes, went to her cousin's apartment for some drinks then went downstairs and was in front of her cousin Meeka's apartment building. Meeka then went to the vehicle which was down the block for a cigarette while she and her boyfriend Walter Alston stayed in front of the building; after 5 to 10 minutes after Meeka left, the cops came and arrested them. No police officer saw Plaintiff in the vehicle, there was none of Plaintiff's DNA or fingerprints on the firearm. No police officer saw Plaintiff actually, constructively or statutorily possess of a firearm. At the time of the incident Plaintiff was gainfully employed full time for United Parcel Service and had no criminal convictions prior to the incident. The vehicle was searched after the Plaintiff and her boyfriend were arrested. No contraband was found on

the person after she was searched during the arrest process. When police approached the Plaintiff they asked Plaintiff if the vehicle (about 3-4 car length away) surrounded by multiple cops cars was hers. Plaintiff responded no that was not her vehicle. The Walter came over and after a brief conversation he admitted the car was his. The Plaintiff was asked by the police multiple times for permission to search the vehicle each time Plaintiff refused stating the vehicle was not hers.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

20. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "19" with full force and effect as though set forth at length herein.
21. Defendants **KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B16644121 N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
22. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
23. Plaintiff **JANITA SPENCE** is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York

and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

24. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
25. On or about August 5, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff JANITA SPENCE, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against her, without the Defendants possessing probable cause to do so. In this incident, the Plaintiff was approximately 30' to 40' from a vehicle which the police allegedly found a firearm and searched even though they had no legal cause to do so. At no time did the police ever see the Plaintiff in the vehicle neither did the police find the DNA, fingerprints of the Plaintiff on the alleged firearm found in the vehicle that belongs to Walter Alston. At no time did any City of New York police officers see the Plaintiff in actual, constructive or statutory possession of the firearm allegedly found in the vehicle of Mr. Alston. Further, at no time did the Plaintiff see any firearm have knowledge that a firearm in the vehicle nor did she have knowledge that a firearm was in the vehicle at anytime she had been in the vehicle prior to her being arrested. It should be noted that after Plaintiff and Mr. Alston left the vehicle for some time before her arrest, Plaintiff's cousin went into the vehicle for a cigarette. **KENIA ACOSTA P.O.**

OF THE 44 PCT., SHIELD #1035, TAX ID #952383 was the arresting officer on the instant case. KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383 falsely arrested Plaintiff because there was no probable cause to believe Plaintiff committed a crime or violation of the law. The false or incomplete statements made by KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383 led to Plaintiff being maliciously prosecuted. KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383 drafted a criminal complaint claiming that Plaintiff was involved in possession of a firearm. The named officer processed the arrest of the Plaintiff; and/or otherwise, along with "JOHN/JANE DOE I-IV" assisted in the investigation that led to the arrest of the Plaintiff. NYPD Officers committed multiple assault and batteries against the Plaintiff including but not limited to having handcuffs placed on so tight that Plaintiff's wrists turned red. Plaintiff was sent to Rikers Island Correctional Facility for approximately ninety (90) days.

26. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to her person;
 - b. Freedom from battery to her person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;

- h. Freedom from loss of her liberty.
 - i. Freedom from being illegally strip-searched with a cavity inspection.
27. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
28. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A SEVENTH CAUSE OF ACTION

29. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "28" with full force and effect as though set forth at length herein.
30. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
31. THE CITY OF NEW YORK was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and search warrant, said police

officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

32. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
33. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to her person and denied her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN EIGHTH CAUSE OF ACTION

34. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "33" as it set forth at length herein.
35. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police

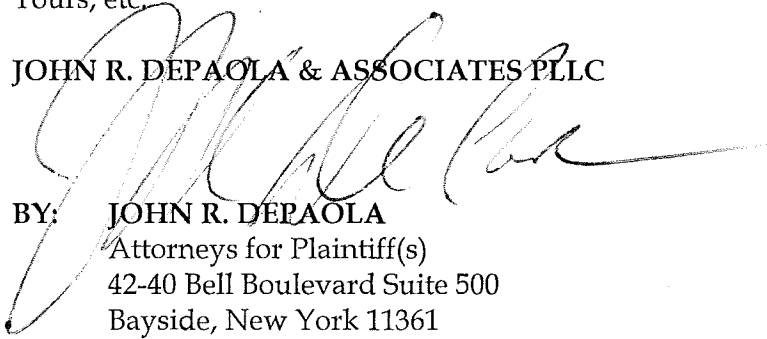
Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
June 28, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  **JOHN R. DEPAOLA**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
JANITA SPENCE,

VERIFICATION

Plaintiffs,

-against-

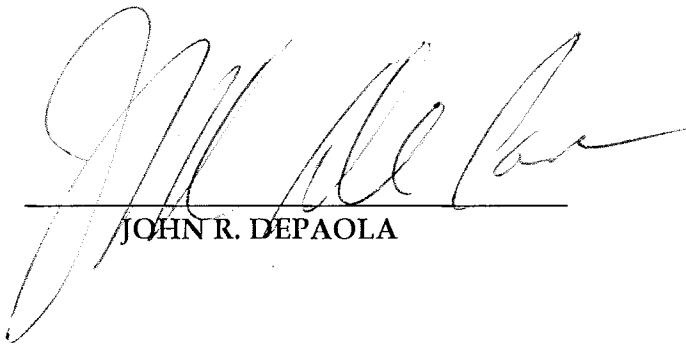
THE CITY OF NEW YORK, KENIA ACOSTA P.O. OF
THE 44 PCT., SHIELD #1035, TAX ID #952383,
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JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON AUGUST 5, 2016
AND NO OTHER DATE,

Defendants.

-----X
I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 28, 2018



JOHN R. DEPAOLA

Index No. :

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JANITA SPENCE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, KENIA ACOSTA P.O. OF THE 44 PCT., SHIELD #1035, TAX ID #952383, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B16644121 N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON AUGUST 5, 2016 AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400 / (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for